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Voters in Maine and Texas to decide local Flock camera measures on Nov. 3

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On Nov. 3, voters will decide two local ballot measures related to automated license plate readers (ALPRs). These measures will be decided in York, Maine, and League City, Texas.

ALPRs, sometimes referred to as Flock cameras, are surveillance cameras made by Flock Safety that photograph passing vehicles and record license plate numbers and vehicle characteristics. The systems also record the date, time, and location of the vehicle sighting. Law enforcement agencies can search the information collected by these cameras to identify vehicles during investigations. The systems can also generate alerts when a vehicle matches an entry in a law enforcement database or other designated list.

The measure in York, Maine, is a citizen initiative, and made the ballot after over 100 residents signed the petition. If voters pass the measure, ALPRs would be banned in the town, and voter approval would be required for any future installations of surveillance technology.

Lt. Nick Piskopanis, a police officer in York, previously said that ALPRs were beneficial, saying, “For us, it's been fantastic. We've solved multiple crimes, crimes that we wouldn't have normally been able to solve.”

At a public hearing in September, York residents expressed their views on the use of ALPRs. York Town Manager Peter Joseph said,

“People kind of acknowledge that if you go into a business, whether it's a public governmental building or another business in town, they have security cameras up for their own purpose. I think people expect that in today's society. Watching the roadway and logging every time a car goes by is what really got people concerned in this instance.”

Marla Johnson, vice chair of the York Select Board, said, “If I want to get on the Turnpike and go down to Home Depot or Target, the idea that my plate is being scanned for no reason is bothersome.”

Currently, Flock cameras in York will remain covered with plastic until voters decide on the measure on Nov. 3.

Meanwhile, in League City, Texas, voters will decide on an advisory question, Proposition A, related to ALPRs. Voting ‘yes’ on the measure would approve the use of ALPRs at fixed locations on public roadways for law enforcement purposes, while a ‘no’ vote would oppose the use of ALPRs.

Unlike the York measure, an advisory question is non-binding, meaning the outcome of the measure has no legal effect on local statute. However, League City council members unanimously approved a resolution on Oct. 13 that would require the removal of ALPRs within 72 hours of the official canvass of election results if voters reject the advisory question.

League City currently manages 55 Flock cameras, while also having access to 23 cameras managed by homeowners' associations and six managed by private businesses. According to the League City police department, Flock camera footage is retained for 30 days unless preserved as evidence in a criminal or administrative investigation, and police department personnel must be trained and authorized before using the system.

League City Council candidate Seth Rowlands, running for Position 3, supported the use of the ALPR cameras, saying, “Yes, it does help us catch criminals faster, but it also lets us catch criminals period, because there are several cases where the only shred of evidence there was was a hit on a Flock camera.”

Teresa Potter, another candidate for the League City Council, opposed Flock cameras, saying, “I do not support Flock cameras. I

am against increased surveillance of my community. I think that our police department is amazing ... and I think that the Flock cameras are an unnecessary burden to our rights."

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